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General Council

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STATEMENT ON SPECIAL AND DIFFERENTIAL TREATMENT TO PROMOTE DEVELOPMENT

CO-SPONSORED BY THE AFRICAN GROUP, THE PLURINATIONAL STATE OF BOLIVIA, CAMBODIA, CHINA, CUBA, INDIA, LAO PEOPLE'S DEMOCRATIC REPUBLIC, OMAN, PAKISTAN AND THE BOLIVARIAN REPUBLIC OF VENEZUELA

*Revision**

The following communication, dated 14 October 2019, is being circulated at the request of the delegations of Benin, on behalf of the African Group, the Plurinational State of Bolivia, Cambodia, China, Cuba, India, Lao People's Democratic Republic, Oman, Pakistan and the Bolivarian Republic of Venezuela.

1.1. The WTO's Marrakesh Agreement recognizes that Members' relations in the field of trade and economic endeavour 'should be conducted with a view to raising standards of living, ensuring full employment and a large and steadily growing volume of real income...'.¹

1.2. The GATT and WTO have recognized that developing countries need S&D to access and benefit from international markets as they face more serious challenges compared to developed countries. As a result, S&D is an unconditional and treaty-embedded right that has been provided to all developing countries, including in Part IV of the GATT. The WTO allows developing countries to make their own assessment about their development status.

1.3. S&D has provided developing Members including LDCs the space to calibrate their trade integration and formulate their domestic trade policies in ways that help them reduce poverty, generate employment and integrate meaningfully into the global trading system. Nevertheless, to date, the development challenges and divide persist and have in fact deepened in significant areas. Due to these continued challenges, Ministers at the Doha Ministerial agreed to strengthen and make the WTO's S&D provisions 'more precise effective and operational'. Today, S&D remains extremely important for trade to be more inclusive and equitable, as well as for developing countries to meet their Sustainable Development Goals (SDGs).

1.4. Any unilateral action depriving developing Members including LDCs of treaty-embedded rights would be inconsistent with Members' obligations, and would in fact erode the foundation of the multilateral trading system which functions on the basis of being 'rules-based'. This will cause lasting and systemic damage to the trading system.

1.5. We reaffirm the following principles:

- Developing countries' unconditional rights to S&D in WTO rules and negotiations must continue;
- Developing countries must be allowed to make their own assessments regarding their own developing country status;

* This revision is to add Cambodia, Lao People's Democratic Republic, Pakistan and the Bolivarian Republic of Venezuela as co-sponsors to this communication.

- Existing S&D provisions must be upheld;
- S&D must be provided in current and future negotiations.

1.6. Attempts to water down these principles would be a recipe for intractable deadlock at the WTO, including in the negotiations on fisheries subsidies. It is in the interest of the entire membership to avoid this situation.
